

25STCV20989 25STCV20989

County: los-angeles
Division: Civil Law and Motion
Department: 506
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Case Number: 25STCV20989 Hearing Date: August 20, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

ERIC GREEN,

Plaintiff,

vs.

LOS ANGELES COUNTY SHERIFF, et al.,

Defendants.

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CASE NO.: 25STCV20989

[TENTATIVE] ORDER SUSTAINING DEFENDANTS'
DEMURRERS; GRANTING MOTION TO STRIKE

Dept. 506

8:30 a.m.

August 20, 2026

On

May 16, 2026, Plaintiff Eric Green (proceeding in pro per) filed a second amended complaint ("SAC") against Defendants County of Los Angeles (erroneously sued as Los Angeles County Sheriff), California Department of Insurance, Andrew Gulcher, Erin Hall, and Myra Svoboda.

On

June 4, 2026, Defendant County filed a demurrer. The same date, the remaining Defendants ("CDI Defendants") also filed a demurrer and a motion to strike.

DISCUSSION

A

demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.) A special demurrer for uncertainty under Code of Civil Procedure section 430.10, subdivision (f) is disfavored and will only be sustained where the pleading is so bad that defendant

or plaintiff cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (*Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.)

The court may, upon a motion or at any time in its discretion: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subds. (a)-(b).)

Plaintiff's

SAC uses the Form PLD-C-001 for Contract.

Plaintiff alleges additional causes of action for defamation per se, libel, slander, emotional distress, punitive damages, negligence, discrimination, Unruh Civil Rights Act, and Title VIII of the Civil Rights Act of 1964. (SAC at p. 2, ¶¶ 8-9.) "The Judicial Council pleading forms have simplified the art of pleading, and have made the task of drafting much easier. Nevertheless, in some cases more is required than merely placing an 'X' in a box. [Citation.]" (*People ex rel. Dept. of Transportation v. Superior Court* (1992) 5 Cal.App.4th 1480, 1484.)

The

SAC includes an eight-page attachment consisting of a narrative written in all capital letters. No causes of action are enumerated or identified, and it is not clear which claims are directed at each Defendant. (See California Rules of Court, rule 2.112.) This results in a nearly incomprehensible and nonfunctional SAC. The confusion is amplified by 24 pages of unlabeled and unidentified exhibits, including emails, claims for damages, and EEOC correspondence. Nevertheless, Defendants attempt to parse the allegations.

Defendant

County observes that there are no facts about any employee making any false statements about Plaintiff, and there are no facts about any wrongdoing by Defendant County. (County Demurrer at pp. 5-7.) Plaintiff also does not allege any statutory basis for Defendant County's liability. (*Id.* at pp. 7-8; see Gov. Code, § 815, subd. (a).) Moreover, the alleged communications are subject to the litigation privilege. (County Demurrer at pp. 8-9; see Civ. Code, § 47.)

The

CDI Defendants argue that Plaintiff's claims are barred by his failure to file a government claim. (CDI Demurrer at pp. 4-5.) Under the Government Claims Act, no person may sue a public entity or public employee for money or damages unless a timely written claim has been presented to and denied by the public entity. (County of Los Angeles v. Superior Court (2005) 127 Cal.App.4th 1263, 1267.) Absent an applicable exception, failure to timely present a claim for money or damages to a public entity bars a plaintiff from filing suit against that entity bars a plaintiff from filing a lawsuit against that entity. (State of California v. Superior Court (2004) 32 Cal.4th 1234, 1239.) Even if Plaintiff had filed a claim, the CDI Defendants are immune for any misrepresentations. (CDI Demurrer at pp. 6-8; see Gov. Code, §§ 818.8, 822.2.) Additionally, the allegations of discrimination are uncertain. (CDI Demurrer at pp. 8-9.)

The

demurrers are sustained and the motion to strike is granted for the reasons set forth in the motions.

CONCLUSION

The

demurrers are SUSTAINED. The motion to strike is GRANTED.

The

Court is not convinced about the viability of Plaintiff's claims. However, due to the lack of clarity in the SAC, the Court will grant Plaintiff a final opportunity to clarify his allegations.

Plaintiff

is granted 30 days' leave to amend the entire complaint.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are

required unless a companion hearing (for example, a Case Management Conference)
is also on calendar.

Dated this 20th day of August 2026

Hon. Thomas D. Long

Judge of the Superior
Court